

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

AAKW, LLC, a Texas limited liability
company, doing business as Animal
Ark,

Respondent.

AWA Docket No. 25-J-0036

COMPLAINT

REC'D - USDA/OALJ/HCO
2025 FEB 13 10:16 AM

There is reason to believe that the Respondent named herein has violated the Animal Welfare Act, as amended (7 U.S.C. § 2131 *et seq.*) (AWA or Act), and the regulations (9 C.F.R. Part 2) (Regulations) and standards (9 C.F.R. Part 3) (Standards) issued thereunder. Therefore, the Administrator of the Animal and Plant Health Inspection Service (APHIS) issues this complaint alleging the following:

JURISDICTIONAL ALLEGATIONS

1. Respondent AAKW, LLC is a Texas limited liability company, doing business as Animal Ark, whose registered agent for service of process is Kevin Willyerd and address is 2730 Brookdale Drive, Kingwood, TX 77339.
2. At all times mentioned herein, the Respondent was a dealer, as that term is defined in the Act and the Regulations, and held AWA Class B “Dealer” license No. 74-B-0814.

ALLEGED VIOLATIONS

3. On or about May 24, 2023, the Respondent violated the Regulations (9 C.F.R. § 2.134) by failing to develop, document, and follow an appropriate plan to provide for the humane handling, treatment, transportation, housing, and care of animals in the event of an emergency or disaster, as follows: the Respondent did not have a developed and documented contingency plan.

4. On or about May 24, 2023, the Respondent violated the Regulations (9 C.F.R. § 2.100(a)) by failing to meet the Standards, as follows:

- a. an enclosure housing a guinea pig had over-accumulation of feces. 9 C.F.R. § 3.31(a)(1).
- b. two adjoining enclosures individually housing two guinea pigs had an over-accumulation of feces. 9 C.F.R. § 3.31(a)(1).
- c. an enclosure housing two white rabbits had over-accumulation of feces. 9 C.F.R. § 3.56(a)(1).
- d. an enclosure housing five female hedgehogs had over-accumulation of feces. 9 C.F.R. § 3.131(a).
- e. two enclosures housing two hedgehogs each had over-accumulation of feces. 9 C.F.R. § 3.131(a).
- f. the food and breeding rooms, which contained two breeding pairs of hedgehogs, were untidy and in disrepair. 9 C.F.R. § 3.131(c).
- g. numerous fruit flies gathered on the sugar glider food in the exhibition room and numerous house flies were found in various areas of the exhibition and breeding rooms. 9 C.F.R. § 3.131(d).

5. On or about September 11, 2023, the Respondent violated the Regulations (9 C.F.R. § 2.100(a)) by failing to meet the Standards, as follows:

- a. Water bottles for two guinea pigs housed in separate enclosures had green algae growing along the inside. 9 C.F.R. § 3.30.
- b. Water bottles for two pied degus, two hedgehogs, and four hedgehogs had green algae growing along the inside. 9 C.F.R. § 3.130.

6. On or about November 27, 2023, the Respondent violated the Regulations (9 C.F.R. § 2.126) by failing to allow APHIS officials to enter its place of business during business hours to conduct an inspection.

WHEREFORE, it is hereby ordered that for the purpose of determining whether the Respondent has in fact violated the Act and the Regulations and Standards issued under the Act, this complaint shall be served upon the Respondent. Respondent shall file an answer with the Office of the Hearing Clerk, Room 1031-South Building, United States Department of Agriculture, 1400 Independence Avenue, SW, Washington, DC 20250-9200, in accordance with the Rules of Practice governing proceedings under the Act (7 C.F.R. §§ 1.130-162.13). Failure to file an answer shall constitute an admission of all the material allegations of this Complaint. APHIS requests that this matter proceed in accordance with the Rules of Practice governing proceedings under the Act, and that such order or orders be issued as are authorized by the Act (7 U.S.C. § 2149), including termination of AWA license 74-B-0814, as warranted under the circumstances.

Done at Washington, D.C.

this _____ day of _____ 2025

DONNA LALLI

Digitally signed by DONNA LALLI
Date: 2025.02.13 09:48:25 -05'00'

Dr. Michael Watson
Administrator
Animal and Plant Health Inspection Service

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